

In the
Court of Appeals
Sixth Appellate District of Texas at Texarkana

No. 06-26-00002-CR

DAVID WAYNE VAUGHAN, Appellant

V.

THE STATE OF TEXAS, Appellee

On Appeal from the 5th District Court
Cass County, Texas
Trial Court No. 2024F00127

Before Stevens, C.J., van Cleef and Rambin, JJ.

O R D E R

Our review of the clerk's record in this case indicates that it contains "sensitive data" as that phrase is defined in Rule 9.10 of the Texas Rules of Appellate Procedure. *See* TEX. R. APP. P. 9.10. Sensitive data includes "a driver's license number, passport number, social security number, tax identification number or similar government-issued personal identification number." TEX. R. APP. P. 9.10(a)(1). Specifically, the clerk's record contains a social security number. Rule 9.10(b) states, "Unless a court orders otherwise, an electronic or paper filing with the court, including the contents of any appendices, must not contain sensitive data." TEX. R. APP. P. 9.10(b).

Rule 9.10(g) provides, "A court may also order that a document be filed under seal in paper form or electronic form, without redaction." TEX. R. APP. P. 9.10(g). Therefore, because the clerk's record contains a social security number, we order the clerk of this Court or his appointee, in accordance with Rule 9.10(g), to seal the electronically filed clerk's record in this case.

IT IS SO ORDERED.

BY THE COURT

Date: November 5, 2026